

REQUEST TO THE ARRESTING AGENCY FOR AN INVESTIGATION AND A
MISTAKEN-IDENTITY FINDING

THIS IS A WRITTEN REQUEST TO A LAW-ENFORCEMENT AGENCY. IT IS NOT A COURT
FILING, AND NOTHING ON THIS PAGE IS FILED WITH ANY COURT.

TO: THE RECORDS UNIT OF THE LAW-ENFORCEMENT AGENCY NAMED BELOW

Name of the agency that made the arrest, from the arrest paperwork:

.....

Address the agency receives written record requests at:

.....

.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

Mailing address: 1188 Upper Uncompahgre Crossing Road, Apartment 14B, Grand Junction, Colorado
81501-2214

Telephone: (970) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RE: REQUEST FOR AN INVESTIGATION AND A MISTAKEN-IDENTITY FINDING UNDER C.R.S.
Sec. 24-72-702

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, am the person named in the arrest record described
below. I am writing to ask this agency to investigate that arrest and to find that I was arrested because of
mistaken identity.

2. The arrest, as the arrest record states it:

Date of the arrest:

.....

Case or incident number of the arrest:

.....

Identifiers the arrest was recorded under (the name and any other identifiers on the arrest record):

.....

.....

What I was accused of:

.....

3. Why the arrest was of the wrong person. What I know, and what I am attaching:

.....
.....
.....
.....

4. Name and any description of the person I believe I was mistaken for, if I know it:

.....

5. So far as I am aware, no charges were filed arising from this arrest. What shows that, and where it is recorded:

.....

6. WHAT I AM ASKING THIS AGENCY TO DO. Investigate this arrest, and if the investigation finds that I was arrested because of mistaken identity and that no charges were filed, make that finding and petition the district court of the judicial district where the arrest occurred to expunge the records of the arrest, as C.R.S. Sec. 24-72-702 requires the arresting agency to do within 90 days of such a finding. Please tell me in writing what the agency decides, and on what date.

7. I am not asking any court for anything by this request, and I am not asking this agency to decide whether I am innocent of anything I was actually arrested for. I am asking it to establish whether the person arrested was me.

DATE SIGNATURE OF REQUESTER

(The requester signs and dates this request personally. Nothing on this page is signed or dated for the requester.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Uncompahgre Crossing Road, Apartment 14B, Grand Junction, Colorado 81501-2214

TELEPHONE: (970) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

ATTACHED: the identity evidence and any no-charge record listed at paragraphs 3 and 5.

Route:

obligation:research-decision-route:CO:co_mistaken_identity_expungement:participant_investigation_and_finding_request

WHERE THIS GOES, WHAT IT COSTS, AND WHAT YOU DO NOT FILE

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT THIS IS, IN ONE LINE

A written request to the law-enforcement agency that arrested you, asking it to investigate and to find that the arrest was a mistaken-identity arrest. It is not a court filing.

WHO DECIDES, AND WHAT YOU DO NOT FILE

The recorded Colorado rule: C.R.S. Sec. 24-72-702 creates a mandatory agency-first procedure. No later than 90 days after a law-enforcement investigation finds that a person was arrested because of mistaken identity and no charges were filed, THE ARRESTING AGENCY must petition the district court in the judicial district where the arrest occurred.

So on this route you file NOTHING with any court. No petition, no motion, no proposed order, no certificate of service. The agency investigates, the agency finds, and the agency petitions.

The recorded precondition is exact: this route depends on an ACTUAL AGENCY FINDING of mistaken identity, and it is not a general vehicle for litigating innocence where the agency has never made that determination. Where there is no finding, the recorded first output is a written request for investigation and finding - which is the other page of this packet.

WHERE IT GOES

To the records unit of the agency that arrested you, or whatever office that agency names for written record enquiries. Your arrest paperwork names the agency; that agency's records unit is the office to ask for the address, and it is the office this request goes to.

Nothing held in the repository names the agency that arrested you, because that is a fact of your own arrest.

WHAT IT COSTS

Nothing is asked of you anywhere in this packet, and no held source states any charge for making this request. A written request to an agency to look at its own record is not a court filing and carries no filing fee.

The recorded no-cost rule in the statute - "No filing fee or other expungement cost may be charged" - is about the expungement this route eventually leads to, not about this request.

If the agency says it charges for a records search or for copies, that is the agency's own schedule. Ask its records unit what the charge is for before you pay it.

Colorado's published petition-sealing fees on forms JDF 417 and JDF 612 belong to a different statutory scheme and are not the price of anything here.

WHO ELSE HAS TO BE TOLD

Nobody. There is no opposing party, no district attorney to notify and no certificate of service, and no held

record states any service requirement for this request. Send it to one place and keep dated proof that you did.

WHAT HAPPENS NEXT, EITHER WAY

IF THE AGENCY MAKES A FINDING: write down the date of the finding. The recorded rule gives the agency 90 days from that date to petition the district court itself. If it does, the matter is in court and it got there without you filing anything.

IF THE 90 DAYS PASS AND THE AGENCY HAS NOT PETITIONED: the statute lets you file the petition yourself, in the same district court, and the recorded rule is that no filing fee or other expungement cost may be charged. That petition is a different instrument in a different packet; ask for the Colorado mistaken-identity court-petition packet.

IF THE AGENCY REFUSES, FINDS AGAINST YOU, OR DISPUTES WHAT YOU SENT: stop. The recorded escalation for a no-finding or a dispute is a lawyer, not a self-help filing.

WHEN TO STOP AND GET HELP

- the agency refuses to investigate or finds against you;
- anyone disputes what you say about the arrest;
- charges were filed arising from the arrest;
- you are trying to establish innocence of something you were actually arrested for;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

A written request to an agency, authored from one recorded branch of C.R.S. Sec. 24-72-702. It is not a Colorado JDF form - the controlling decision records that none was located for this track - not a court filing, not the district-court petition another packet carries, not legal advice, not sent for you, and not a promise that the agency will investigate or find anything.

Route:

obligation:research-decision-route:CO:co_mistaken_identity_expungement:participant_investigation_and_finding_request